

O.G. Power System Pvt. Ltd. v. Uttar Pradesh Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 September 2019 · WRIT-C No. 30554 of 2019 · **Writ dismissed; relegated to Ombudsman under para 7.10(i).**

HEADNOTE

A writ challenging a CGRF order and a consequential electricity-bill demand is not maintainable where para 7.10(i) of the Electricity Supply Code, 2005, read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, provides a statutory appeal to the Ombudsman. The petition is dismissed on that alternative remedy without examining the bill.

FACTUAL SUMMARY

O.G. Power System Pvt. Ltd. and another petitioned the Allahabad High Court under Article 226 challenging a 26 March 2019 order of the Consumer Grievance Redressal Forum, Allahabad, and a consequential 12 July 2019 letter by which the licensee directed payment of an electricity bill of Rs 2,59,329. The controversy was confined to that billing demand. After hearing counsel for the petitioners and the Standing Counsel for the State, the Division Bench disposed of the writ on 23 September 2019 without examining the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(i)

ombudsman-alternative-remedy

HOLDING

A writ petition under Article 226 challenging a Consumer Grievance Redressal Forum order and a consequential licensee letter demanding payment of an electricity bill is dismissed where the consumer has a statutory alternative remedy of raising the grievance before the Ombudsman under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003. ¶ 3-4

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A writ challenging a CGRF order and a consequential electricity-bill demand is not maintainable where para 7.10(i) of the Electricity Supply Code, 2005, read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, provides a statutory appeal to the Ombudsman.. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CGRF ORDER DATED 26.03.2019 AND THE BILL DEMAND OF RS 2,59,329

Petition dismissed solely on alternative remedy; neither the Forum order nor the bill was examined. ¶ 3-4